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Bronx County Clerk's Office (BronxCcHome)

Case File Summary: 301015-2016

File Date: 03/11/2016	Index Type: NON-PERMANENT - FEE - FULL ACCESS
Plaintiff: WILLIAM WARING	Plaintiff Firm: PAPA, DEPAOLA AND BROUNSTEIN
Defendant: THE CITY OF NEW YORK , ET AL	Defendant Firm: N/A

Documents Filed

Filed Date	Document
03/11/2016	NON-PERMANENT - FEE - FULL ACCESS SUMMONS AND VERIFIED COMPLAINT
03/29/2016	AFFIDAVIT OF SERVICE AMENDED SUMMONS
03/29/2016	Amended Summons
04/15/2016	Affidavit of Service
05/04/2016	Affidavit of Service
06/23/2016	RJI
08/03/2016	MOTION FEE PAID
08/19/2016	Preliminary Conference Order PRELIMINARY CONFERENCE ORDER DATED:8-16-16
09/14/2016	EXHIBITS
09/14/2016	Short Form Order SHORT FORM ORDER & STIPULATION DATED:9/9/2016, MOTION W/AFFIRMATION & AFFIDAVITS
04/18/2017	Compliance Conference Order DATED: 4/14/2017

**SUPRÊME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

----- x
WILLIAM WARING,

Plaintiff,

-against-

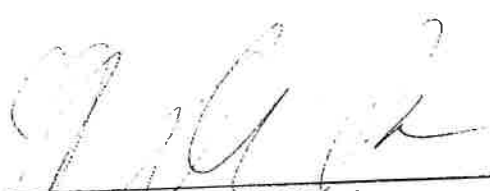
**THE CITY OF NEW YORK, THE ARRESTING
NYPD POLICE DETECTIVE ON ARREST DATE
OF 12/29/2014 AND/OR 12/30/2014, UNDER
DOCKET #2014BX067609 N/H/A JOHN/JOANE
DOE I, OTHER NEW YORK CITY POLICE
DETECTIVES ON SAID ARREST WHOSE NAMES
ARE NOT KNOWN AT THIS TIME N/H/A/
JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO
THE INCIDENT THAT AROSE ON 12/29/2014
AND/OR 12/30/2014, AND NO OTHER DATES,**

Defendant(s). x

TO THE ABOVE NAMED DEFENDANT(S):

You ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
March 11, 2016



JOHN R. DEPAOLA, ESQ. of
JOHN R. DEPAOLA & ASSOCIATES PLLC
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

Index No. Purchased

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is where
the tort arose.

SUMMONS

Plaintiff(s) resides at

William Waring
320 Queen Street, Apt 9D
Bristol, CT 06010.

RECEIVED

2016 MAR 11 PM 2:13
CLERK
COUNTY

Defendants' Addresses:

CORPORATION COUNSEL OF THE CITY OF NEW YORK

100 Church Street

New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- x
WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE ARRESTING
NYPD POLICE DETECTIVE ON ARREST DATE
OF 12/29/2014 AND/OR 12/30/2014, UNDER
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THE INCIDENT THAT AROSE ON 12/29/2014
AND/OR 12/30/2014, AND NO OTHER DATES,

Defendant(s).
----- x

Index No. Purchased

VERIFIED COMPLAINT

2016 MAR 11 PM 2:18
CLERK
COUNTY CLERK
BRONX COUNTY

RECEIVED

WILLIAM WARING, by his attorneys, JOHN R. DEPAOLA & ASSOCIATES

PLLC, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff, **WILLIAM WARING** was a resident of the City of Newark, County of Essex, City and State of New Jersey. However, Plaintiff relocated to Bristol, Connecticut on or about January 1, 2015, which is Plaintiff's current address.
2. At all times mentioned, Defendant, **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

3. On or about the March 23, 2015 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant, **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer(s) designated to receive such process personally, which Notice of Claim advised the Defendant, **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff, **WILLIAM WARING**, has complied with the request of the municipal Defendants' for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants, **THE ARRESTING NYPD POLICE DETECTIVE ON ARREST DATE OF 12/29/2014 AND/OR 12/30/2014, UNDER DOCKET #2014BX067609 N/H/A JOHN/JOANE DOE I, OTHER NEW YORK CITY POLICE DETECTIVES ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014 AND/OR 12/30/2014, AND**

NO OTHER DATES, and at all times herein were acting in such capacity as its agents, servants and employees.

7. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, choked, grabbed, twisted the arms, handcuffed and seized the Plaintiff, **WILLIAM WARING**, in an excessive manner about his person, causing him physical pain and injury, including a fractured wrist, as well as mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law. Additionally Plaintiff was subjected to a strip search and cavity inspection.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants, **THE ARRESTING NYPD POLICE DETECTIVE ON ARREST DATE OF 12/29/2014 AND/OR 12/30/2014 UNDER DOCKET #2014BX067609 N/H/A JOHN/JOANE DOE I, OTHER NEW YORK CITY POLICE DETECTIVES ON SAID ARREST WHOSE NAMES ARE NOT KNOWN**

AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014 AND/OR 12/30/2014, AND NO OTHER DATES, jointly and severally did place Plaintiff, **WILLIAM WARING** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike, choke, restrain, and twist the arms of the Plaintiff, resulting in physical injury including a fracture of the wrist. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants. The Plaintiff was also subjected to a strip search and cavity inspection.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants, **THE ARRESTING NYPD POLICE DETECTIVE ON ARREST DATE OF 12/29/2014 AND/OR 12/30/2014, UNDER DOCKET #2014BX067609 N/H/A JOHN/JOANE DOE I, OTHER NEW YORK CITY POLICE DETECTIVES ON SAID ARREST WHOSE NAMES ARE NOT KNOWN** AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO **THE INCIDENT THAT AROSE ON 12/29/2014 AND/OR 12/30/2014, AND**

NO OTHER DATES, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully *arrested* the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2014BX037236. The Plaintiff was thereafter held in custody over the course of approximately forty-one (41) hours until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants, **THE ARRESTING NYPD POLICE DETECTIVE ON ARREST DATE OF 12/29/2014 AND/OR 12/30/2014, UNDER DOCKET #2014BX067609 N/H/A JOHN/JOANE DOE I, OTHER NEW YORK CITY POLICE DETECTIVES ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014 AND/OR 12/30/2014, AND**
NO OTHER DATES, jointly and severally without any valid warrant, order or

other legal process and without any legal right, wrongfully and unlawfully *imprisoned* the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in one of the City of New York's Correctional Facilities. The Plaintiff was thereafter held in custody over the course of approximately forty-one (41) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Upon information and belief, on or about December 29, 2014 and from that time until the dismissal of charges on or about December 31, 2014, which was a favorable termination for the accused by the Honorable Judge A. Montano presiding at the Criminal Court of the City of New York, Bronx County, Defendants, **THE CITY OF NEW YORK, THE ARRESTING NYPD POLICE DETECTIVE ON ARREST DATE OF 12/29/2014 AND/OR 12/30/2014, UNDER DOCKET #2014BX067609 N/H/A JOHN/JOANE DOE I, OTHER NEW YORK CITY POLICE DETECTIVES ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014 AND/OR 12/30/2014, AND NO OTHER**

DATES, deliberately and maliciously prosecuted Plaintiff, **WILLIAM WARING**, an innocent man, without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.

16. The Defendants, jointly and severally, including their agents, servants or employees, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff, and due to the absence of probable cause malice can be inferred.
17. The commencement of these criminal proceedings under Docket No. 2014BX067609 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A SIXTH CAUSE OF ACTION

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.
20. Defendants, **THE ARRESTING NYPD POLICE DETECTIVE ON ARREST DATE OF 12/29/2014 AND/OR 12/30/2014, UNDER DOCKET**

#2014BX067609 N/H/A JOHN/JOANE DOE I, OTHER NEW YORK CITY POLICE DETECTIVES ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014 AND/OR 12/30/2014, AND NO OTHER DATES, were at all times relevant, duly

appointed and acting officers of the City of New York Police Department.

21. At all times mentioned herein, said police officers were acting under color of law, to wit, the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.
22. Plaintiff, **WILLIAM WARING**, is and at all times relevant herein, a citizen of the United States and brings this cause of action pursuant to Article 42, Section 1983 of the United States Code, and Article 42, Section 1988 of the United States Code.
23. The Defendant, **CITY OF NEW YORK**, is a municipality duly incorporated under the laws of the State of New York.
24. On or about December 29, 2014, which the police state was on December 30, 2014, the Defendants, armed police, while effectuating the seizure of the Plaintiff **WILLIAM WARING**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully had multiple assault and batteries committed against him, including choking, and ~~having his wrists twisted resulting in a fracture to the wrist, imprisoned and~~

maliciously prosecuted without the Defendants possessing probable cause to do so.

25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. freedom from assault to his person;
- b. freedom from battery to his person;
- c. freedom from illegal search and seizure;
- d. freedom from false arrest;
- e. freedom from malicious prosecution;
- f. freedom from the use of excessive force during the arrest process;
- g. freedom from unlawful imprisonment; and
- h. freedom from loss of his liberty.

26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature, as well as physical injuries including fracture of Plaintiff's wrist. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.
 29. Defendant, **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
 30. Defendant, **CITY OF NEW YORK**, was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
 31. Defendant, **CITY OF NEW YORK**, is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
-

- a. probable cause must be present before an individual such as the Plaintiff herein can be arrested;
 - b. excessive force cannot be used against an individual who does not physically resist arrest; and
 - c. an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
32. The foregoing acts, omissions and systemic failures are customs and policies of the Defendant, **CITY OF NEW YORK**, which caused the police officers to falsely arrest and imprison, maliciously prosecute, search and seize illegally, commit an assault/battery to his person, subjected Plaintiff to strip search and cavity inspection, and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

33. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "32" as it set forth at length herein.
34. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Defendants, **THE ARRESTING NYPD POLICE DETECTIVE ON ARREST DATE OF 12/29/2014 AND/OR 12/30/2014 UNDER DOCKET #2014BX067609 N/H/A JOHN/JOANE DOE I, OTHER NEW YORK CITY POLICE DETECTIVES ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014 AND/OR 12/30/2014, AND NO OTHER**

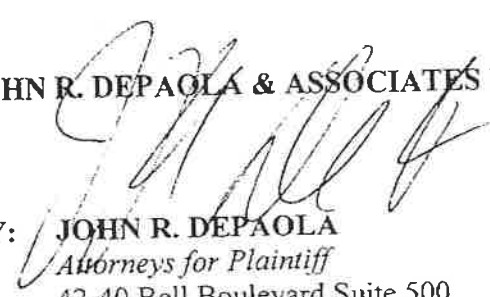
DATES, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
March 11, 2016

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC


BY: JOHN R. DEPAOLA
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

----- X
WILLIAM WARING,

Plaintiff,

-against-

**THE CITY OF NEW YORK, THE ARRESTING
NYPD POLICE DETECTIVE ON ARREST DATE
OF 12/29/2014 AND/OR 12/30/2014 UNDER
DOCKET #2014BX067609 N/H/A JOHN/JOANE
DOE I, OTHER NEW YORK CITY POLICE
DETECTIVES ON SAID ARREST WHOSE NAMES
ARE NOT KNOWN AT THIS TIME N/H/A/
JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO
THE INCIDENT THAT AROSE ON 12/29/2014
AND/OR 12/30/2014, AND NO OTHER DATES,**

Defendant(s). X

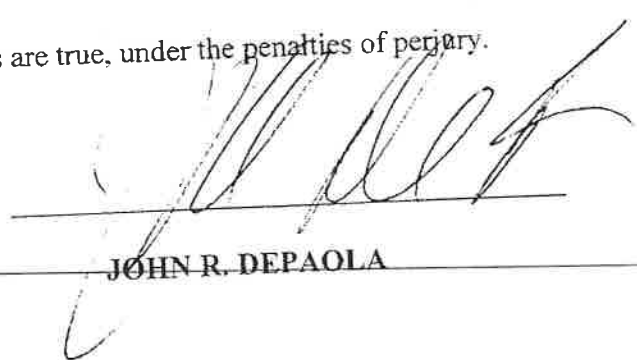
Index No. Purchased

VERIFICATION

I, **JOHN R. DEPAOLA**, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of **JOHN R. DEPAOLA & ASSOCIATES PLLC**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
March 11, 2016



JOHN R. DEPAOLA

Index No. : _____/2016

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE ARRESTING NYPD POLICE DETECTIVE ON
ARREST DATE OF 12/29/2014 AND/OR 12/30/2014 UNDER DOCKET #2014BX067609
N/H/A JOHN/JOANE DOE I, OTHER NEW YORK CITY POLICE DETECTIVES ON
SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/
JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON
12/29/2014 AND/OR 12/30/2014, AND NO OTHER DATES,
Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-4000

To: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 CHURCH STREET, NEW YORK, NY 10007

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated _____

Attorney(s) for

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER FRANK LOCASCIO OF PBBX,
SHIELD #1194, TAX REG. # 955074; OTHER NEW
YORK CITY POLICE DETECTIVES OR OFFICERS
ON SAID ARREST WHOSE NAMES ARE NOT
KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-
IV II-V AS IT PERTAINS TO THE INCIDENT THAT
Arose ON 12/29/2014, AND NO OTHER DATE,

Defendant(s).

Index No. 301015/2016

Plaintiff designates BRONX
County as the place of trial

The basis of the venue is where
the tort arose.

AMENDED SUMMONS

Plaintiff(s) resides at

WILLIAM WARING
320 Queen Street, Apt 9D
Bristol, CT 06010.

TO THE ABOVE NAMED DEFENDANT(S):

You ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete is this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
March 24, 2016


JOHN R. DEPAOLA, ESQ. of
JOHN R. DEPAOLA & ASSOCIATES PLLC
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

Defendants' Addresses:

CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX
REG. # 955074
1 Police Plaza, Room 1100 (Narcotis)
New York, NY 10038

Defendant(s).

**AMENDED
VERIFIED COMPLAINT**

1. At all times mentioned, Plaintiff, **WILLIAM WARING** was a resident of the City of Newark, County of Essex, City and State of New Jersey. However, Plaintiff' relocated to Bristol, Connecticut on or about January 1, 2015, which is Plaintiff's current address.
2. At all times mentioned, Defendant, **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the March 23, 2015 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on

their behalf upon the Defendant, **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer(s) designated to receive such process personally, which Notice of Claim advised the Defendant, **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff, **WILLIAM WARING**, has complied with the request of the municipal Defendants' for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE**, and at all times herein were acting in such capacity as its agents, servants and employees.
7. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants jointly and

severally in their capacity as police officers, wrongfully touched, choked, grabbed, twisted the arms, handcuffed and seized the Plaintiff, **WILLIAM WARING**, in an excessive manner about his person, causing him physical pain and injury, including a fractured wrist, as well as mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law. Additionally Plaintiff was subjected to a strip search and cavity inspection.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE**, jointly and severally did place Plaintiff, **WILLIAM WARING** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike, choke, restrain, and twist the arms of the Plaintiff, resulting in physical injury including a fracture of the wrist. All of the above actions placed the Plaintiff in

imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants. The Plaintiff was also subjected to a strip search and cavity inspection.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE**, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully *arrested* the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2014BX037236. The Plaintiff was thereafter held in custody over the course of approximately forty-one (41) hours until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE**, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully *imprisoned* the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in one of the City of New York's Correctional Facilities. The Plaintiff was thereafter held in custody over the course of approximately forty-one (41) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.

15. Upon information and belief, on or about December 29, 2014 and from that time until the dismissal of charges on or about December 31, 2014, which was a favorable termination for the accused by the Honorable Judge A. Montano presiding at the Criminal Court of the City of New York, Bronx County, Defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE,** deliberately and maliciously prosecuted Plaintiff, **WILLIAM WARING**, an innocent man, without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.
16. The Defendants, jointly and severally, including their agents, servants or employees, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff, and due to the absence of probable cause malice can be inferred.
17. The commencement of these criminal proceedings under Docket No. 2014BX067609 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust

criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A SIXTH CAUSE OF ACTION

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.
20. Defendants, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
21. At all times mentioned herein, said police officers were acting under color of law, to wit, the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.
22. Plaintiff, **WILLIAM WARING**, is and at all times relevant herein, a citizen of the United States and brings this cause of action pursuant to Article 42, Section 1983 of the United States Code, and Article 42, Section 1988 of the United States Code.
23. The Defendant, **CITY OF NEW YORK**, is a municipality duly incorporated under the laws of the State of New York.
24. On or about December 29, 2014, which the police state was on December 30, 2014, the Defendants, armed police, while effectuating the seizure of the Plaintiff **WILLIAM WARING**, did search, seize, assault and commit a battery and grab

the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully had multiple assault and batteries committed against him, including choking, and having his wrists twisted resulting in a fracture to the wrist, imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.

25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
 - a. freedom from assault to his person;
 - b. freedom from battery to his person;
 - c. freedom from illegal search and seizure;
 - d. freedom from false arrest;
 - e. freedom from malicious prosecution;
 - f. freedom from the use of excessive force during the arrest process;
 - g. freedom from unlawful imprisonment; and
 - h. freedom from loss of his liberty.
26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature, as well as

physical injuries including fracture of Plaintiff's wrist. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.
29. Defendant, **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
30. Defendant, **CITY OF NEW YORK**, was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

31. Defendant, **CITY OF NEW YORK**, is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

- a. probable cause must be present before an individual such as the Plaintiff herein can be arrested;
- b. excessive force cannot be used against an individual who does not physically resist arrest; and
- c. an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

32. The foregoing acts, omissions and systemic failures are customs and policies of the Defendant, **CITY OF NEW YORK**, which caused the police officers to falsely arrest and imprison, maliciously prosecute, search and seize illegally, commit an assault/battery to his person, subjected Plaintiff to strip search and cavity inspection, and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

33. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "32" as it set forth at length herein.

34. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Defendants, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT**

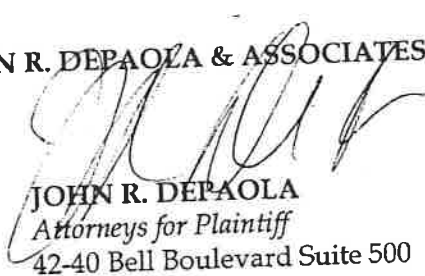
THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
March 24, 2016

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY:  **JOHN R. DEPAOLA**
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER FRANK LOCASCIO OF PBBX,
SHIELD #1194, TAX REG. # 955074; OTHER NEW
YORK CITY POLICE DETECTIVES OR OFFICERS
ON SAID ARREST WHOSE NAMES ARE NOT
KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-
IV II-V AS IT PERTAINS TO THE INCIDENT THAT
Arose ON 12/29/2014, AND NO OTHER DATE,

Defendant(s).

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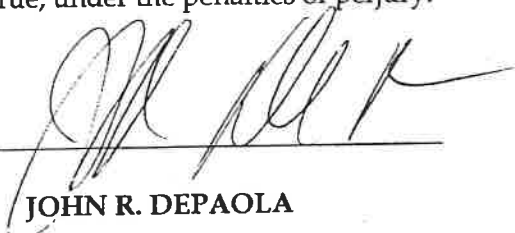
Index No. 301015/2016

VERIFICATION

I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
March 24, 2016



JOHN R. DEPAOLA

Index No. : 301015/2016

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF
PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE
DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT
THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT
THAT AROSE ON 12/29/2014, AND NO OTHER DATE,

Defendants.

AMENDED SUMMONS AND AMENDED VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-4000

To: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 CHURCH STREET, NEW YORK, NY 10007

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated _____

Attorney(s) for

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER FRANK LOCASCIO OF PBBX,
SHIELD #1194, TAX REG. # 955074; OTHER NEW
YORK CITY POLICE DETECTIVES OR OFFICERS
ON SAID ARREST WHOSE NAMES ARE NOT
KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-
IV II-V AS IT PERTAINS TO THE INCIDENT THAT
Arose ON 12/29/2014, AND NO OTHER DATE,

Defendant(s).

Index No. 301015/2016

Plaintiff designates BRONX
County as the place of trial

The basis of the venue is where
the tort arose.

AMENDED SUMMONS

Plaintiff(s) resides at

WILLIAM WARING
320 Queen Street, Apt 9D
Bristol, CT 06010.

TO THE ABOVE NAMED DEFENDANT(S):

You ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
March 24, 2016


JOHN R. DEPAOLA, ESQ. of
JOHN R. DEPAOLA & ASSOCIATES PLLC
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

Defendants' Addresses:

CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

**NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX
REG. # 955074**
1 Police Plaza, Room 1100 (Narcotis)
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER FRANK LOCASCIO OF PBBX,
SHIELD #1194, TAX REG. # 955074; OTHER NEW
YORK CITY POLICE DETECTIVES OR OFFICERS
ON SAID ARREST WHOSE NAMES ARE NOT
KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-
IV II-V AS IT PERTAINS TO THE INCIDENT THAT
Arose ON 12/29/2014, AND NO OTHER DATE,

Defendant(s).

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Index No. 301015/2016

AMENDED
VERIFIED COMPLAINT

WILLIAM WARING, by his attorneys, JOHN R. DEPAOLA & ASSOCIATES PLLC,
respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff, WILLIAM WARING was a resident of the City of Newark, County of Essex, City and State of New Jersey. However, Plaintiff relocated to Bristol, Connecticut on or about January 1, 2015, which is Plaintiff's current address.
2. At all times mentioned, Defendant, CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the March 23, 2015 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on

their behalf upon the Defendant, **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer(s) designated to receive such process personally, which Notice of Claim advised the Defendant, **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff, **WILLIAM WARING**, has complied with the request of the municipal Defendants' for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE**, and at all times herein were acting in such capacity as its agents, servants and employees.
7. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants jointly and

severally in their capacity as police officers, wrongfully touched, choked, grabbed, twisted the arms, handcuffed and seized the Plaintiff, **WILLIAM WARING**, in an excessive manner about his person, causing him physical pain and injury, including a fractured wrist, as well as mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law. Additionally Plaintiff was subjected to a strip search and cavity inspection.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE**, jointly and severally did place Plaintiff, **WILLIAM WARING** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike, choke, restrain, and twist the arms of the Plaintiff, resulting in physical injury including a fracture of the wrist. All of the above actions placed the Plaintiff in

imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants. The Plaintiff was also subjected to a strip search and cavity inspection.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE,** jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully *arrested* the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2014BX037236. The Plaintiff was thereafter held in custody over the course of approximately forty-one (41) hours until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE**, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully *imprisoned* the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in one of the City of New York's Correctional Facilities. The Plaintiff was thereafter held in custody over the course of approximately forty-one (41) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.

15. Upon information and belief, on or about December 29, 2014 and from that time until the dismissal of charges on or about December 31, 2014, which was a favorable termination for the accused by the Honorable Judge A. Montano presiding at the Criminal Court of the City of New York, Bronx County, Defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE,** deliberately and maliciously prosecuted Plaintiff, **WILLIAM WARING**, an innocent man, without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.
16. The Defendants, jointly and severally, including their agents, servants or employees, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff, and due to the absence of probable cause malice can be inferred.
17. The commencement of these criminal proceedings under Docket No. 2014BX067609 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust

criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A SIXTH CAUSE OF ACTION

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.
20. Defendants, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
21. At all times mentioned herein, said police officers were acting under color of law, to wit, the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.
22. Plaintiff, **WILLIAM WARING**, is and at all times relevant herein, a citizen of the United States and brings this cause of action pursuant to Article 42, Section 1983 of the United States Code, and Article 42, Section 1988 of the United States Code.
23. The Defendant, **CITY OF NEW YORK**, is a municipality duly incorporated under the laws of the State of New York.
24. On or about December 29, 2014, which the police state was on December 30, 2014, the Defendants, armed police, while effectuating the seizure of the Plaintiff **WILLIAM WARING**, did search, seize, assault and commit a battery and grab

the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully had multiple assault and batteries committed against him, including choking, and having his wrists twisted resulting in a fracture to the wrist, imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.

25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
 - a. freedom from assault to his person;
 - b. freedom from battery to his person;
 - c. freedom from illegal search and seizure;
 - d. freedom from false arrest;
 - e. freedom from malicious prosecution;
 - f. freedom from the use of excessive force during the arrest process;
 - g. freedom from unlawful imprisonment; and
 - h. freedom from loss of his liberty.
26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature, as well as

physical injuries including fracture of Plaintiff's wrist. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.
 29. Defendant, **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
 30. Defendant, **CITY OF NEW YORK**, was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
-

31. Defendant, **CITY OF NEW YORK**, is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

- a. probable cause must be present before an individual such as the Plaintiff herein can be arrested;
- b. excessive force cannot be used against an individual who does not physically resist arrest; and
- c. an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

32. The foregoing acts, omissions and systemic failures are customs and policies of the Defendant, **CITY OF NEW YORK**, which caused the police officers to falsely arrest and imprison, maliciously prosecute, search and seize illegally, commit an assault/battery to his person, subjected Plaintiff to strip search and cavity inspection, and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

33. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "32" as it set forth at length herein.

34. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Defendants, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT**

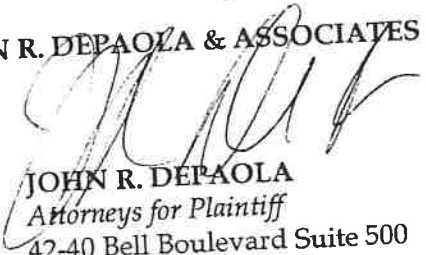
THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
March 24, 2016

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY:  JOHN R. DEPAOLA
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER FRANK LOCASCIO OF PBBX,
SHIELD #1194, TAX REG. # 955074; OTHER NEW
YORK CITY POLICE DETECTIVES OR OFFICERS
ON SAID ARREST WHOSE NAMES ARE NOT
KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-
IV II-V AS IT PERTAINS TO THE INCIDENT THAT
AROSE ON 12/29/2014, AND NO OTHER DATE,

Defendant(s).

Index No. 301015/2016

VERIFICATION

I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
March 24, 2016

JOHN R. DEPAOLA

Index No. : 301015/2016

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF
PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE
DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT
THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT
THAT AROSE ON 12/29/2014, AND NO OTHER DATE,

Defendants.

AMENDED SUMMONS AND AMENDED VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-4000

To: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 CHURCH STREET, NEW YORK, NY 10007

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated _____

Attorney(s) for

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

William Waring
Plaintiff(s).

vs.

The City of New York, et al
Defendant(s).

ATTORNEY: JOHN R. DEPAOLA & ASSOCIATES PLLC

301015-2016
INDEX NUMBER: ~~30105-2016~~

DATE OF FILING: 03/11/2016

AFFIDAVIT OF SERVICE

STATE OF New York: COUNTY OF Nassau ss:

I, Alexander James, being duly sworn deposes and says deponent is not a party to this action and is over the age of eighteen years and resides in the state of New York.

That on 3/24/2016 at 11:55 AM at 100 Church Street, New York, NY 10007,
Deponent served the Summons and Verified Complaint together with Index Number and Date of Filing Endorsed Thereon upon
The City of New York, defendant/respondent/recipient herein.

Said service was effected in the following manner;

By delivering to and leaving a true copy of each to Betty Mazyck personally, a person who is authorized to receive process service for
The City of New York. Deponent knew said governmental subdivision so served to be the governmental subdivision described in said
Summons and Verified Complaint together with Index Number and Date of Filing Endorsed Thereon as said
defendant/respondent/recipient. Deponent knew the individual accepting service to be an/the Clerk thereof.

Deponent describes the individual served to the best of deponent's ability at the time and circumstances of service as follows: Sex:
Female Skin: Brown Hair: Gray Age (Approx): 58 Height(Approx): 5'5" Weight(Approx): 200-225 lbs Glasses: No Other:

I certify that the foregoing statements made by me are true, correct and my free act and deed. I am aware that if any of the foregoing
statements made by me are willfully false, I am subject to punishment.

Sworn to before me this

March 29 2016


Alexander James
License No. 1438821

CRAIG L. EISENBERG
NOTARY PUBLIC, STATE OF NEW YORK
REGISTRATION NO. 01E16030725
QUALIFIED IN SUFFOLK
COMMISSION EXPIRES SEPTEMBER 20, 2017

Ultimate Process Service, Inc. 585 Stewart Ave, Ste LL16, Garden City, NY 11530 516-333-3447 Lic#1376042
Case No: 1513673

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

William Waring
Plaintiff(s).

vs.

The City of New York, et al
Defendant(s).

ATTORNEY: JOHN R. DEPAOLA & ASSOCIATES PLLC

INDEX NUMBER: 301015/2016

DATE OF FILING: 3/28/2016

AFFIDAVIT OF SERVICE

STATE OF New York: COUNTY OF Nassau ss:

I, John L Hudak, being duly sworn deposes and says deponent is not a party to this action and is over the age of eighteen years and resides in the state of New York.

That on 04/12/2016 at 12:59 PM at 41st Precinct, 1035 Longwood Ave, Bronx, NY 10459,
Deponent served the Amended Summons and Amended Verified Complaint together with Index Number and Date of Filing
Endorsed Thereon upon P.O. Frank Locascio, Shield No. 1194, Tax Reg. No. 955074, defendant/respondent/recipient herein.

Said service was effected in the following manner;

By delivering thereat a true copy of each to P.O. Sanchez, a person of suitable age and discretion. That person was also asked by deponent whether said premises was the defendant/respondent/recipient actual place of business and their reply was affirmative.

Deponent describes the individual served to the best of deponent's ability at the time and circumstances of service as follows: Sex: Female Skin: Tan/Hispanic Hair: Brown Age (Approx): 32 Height(Approx): 5'4" Weight(Approx): 130-140 lbs Glasses: No Other:

On 04/13/2016, after delivery of process was effected, deponent enclosed an additional true and attested copy of same in postpaid envelope addressed to the defendant/respondent/recipient at defendant/respondent/recipient place of business in an official depository and by First Class Mail, under the exclusive care of the United States Postal Service within New York State. The envelope bore the Legend "Personal & Confidential" and did not indicate on the outside thereof, by return address or otherwise, that the communication was from an attorney or concerned an action against the defendant/respondent/recipient.

I asked the person spoken to if the defendant/respondent/recipient was in active military service of the United States or the State of New York in any capacity and received a negative reply. The source of my information and the grounds of my belief are the conversations and observations above narrated. Upon information and belief I aver that the defendant/respondent/recipient is not in the military service of New York State or the United States as that term is defined in the statutes of New York State or the Federal Soldiers and Sailors Civil Relief Act.

I certify that the foregoing statements made by me are true, correct and my free act and deed. I am aware that if any of the foregoing statements made by me are willfully false, I am subject to punishment.

Sworn to before me this

April 14 2016

CRAIG L. EISENBERG
NOTARY PUBLIC, STATE OF NEW YORK
REGISTRATION NO. 01E16030725
QUALIFIED IN SUFFOLK
COMMISSION EXPIRES SEPTEMBER 20, 2017

John L Hudak
License No. 1392295

Ultimate Process Service, Inc. 585 Stewart Ave, Ste LL16, Garden City, NY 11530 516-333-3447 Lic#1376042
Case No: 1514529

REQUEST FOR JUDICIAL INTERVENTION

UCS-840 (7/2012)

Supreme COURT, COUNTY OF BronxIndex No: 301015-2016Date Index Issued: 03/11/2016**CAPTION:**

Enter the complete case caption. Do not use et al or et ano. If more space is required, attach a caption rider sheet.

WILLIAM WARING,

Plaintiff(s)/Petitioner(s)

For Court Clerk Use Only:

IAS Entry Date

6/23/16 CC

Judge Assigned

RJI Date:

JUN 23 PM 2:00
SUPREME COURT
JUDICIAL DIST.

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE,

Defendant(s)/Respondent(s)

NATURE OF ACTION OR PROCEEDING:

Check ONE box only and specify where indicated.

MATRIMONIAL☐ Contested

NOTE: For all Matrimonial actions where the parties have children under the age of 18, complete and attach the **MATRIMONIAL RJI Addendum**.
For Uncontested Matrimonial actions, use RJI form UD-13.

TORTS☐ Asbestos☐ Breast Implant☐ Environmental: _____ (specify)☐ Medical, Dental, or Podiatric Malpractice☐ Motor Vehicle☐ Products Liability: _____ (specify)☐ Other Negligence: _____ (specify)☐ Other Professional Malpractice: _____ (specify)☒ Other Tort: FALSE ARREST/PERSONAL INJURY (specify)**OTHER MATTERS**☐ Certificate of Incorporation/Dissolution [see NOTE under Commercial]☐ Emergency Medical Treatment☐ Habeas Corpus☐ Local Court Appeal☐ Mechanic's Lien☐ Name Change☐ Pistol Permit Revocation Hearing☐ Sale or Finance of Religious/Not-for-Profit Property☐ Other: _____ (specify)**COMMERCIAL**☐ Business Entity (including corporations, partnerships, LLCs, etc.)☐ Contract☐ Insurance (where insurer is a party, except arbitration)☐ UCC (including sales, negotiable instruments)☐ Other Commercial: _____ (specify)

NOTE: For Commercial Division assignment requests [22 NYCRR § 202.70(d)], complete and attach the **COMMERCIAL DIV RJI Addendum**.

REAL PROPERTY: How many properties does the application include?☐ Condemnation☐ Mortgage Foreclosure (specify):☐ Residential☐ Commercial

Property Address: _____ Street Address _____ City _____ State _____ Zip _____

NOTE: For Mortgage Foreclosure actions involving a one- to four-family, owner-occupied, residential property, or an owner-occupied condominium, complete and attach the **FORECLOSURE RJI Addendum**.

☐ Tax Certiorari - Section: _____ Block: _____ Lot: _____☐ Tax Foreclosure☐ Other Real Property: _____ (specify)**SPECIAL PROCEEDINGS**☐ CPLR Article 75 (Arbitration) [see NOTE under Commercial]☐ CPLR Article 78 (Body or Officer)☐ Election Law☐ MHL Article 9.60 (Kendra's Law)☐ MHL Article 10 (Sex Offender Confinement-Initial)☐ MHL Article 10 (Sex Offender Confinement-Review)☐ MHL Article 81 (Guardianship)☐ Other Mental Hygiene: _____ (specify)☐ Other Special Proceeding: _____ (specify)**STATUS OF ACTION OR PROCEEDING:**

Answer YES or NO for EVERY question AND enter additional information where indicated.

YES NO

Has a summons and complaint or summons w/notice been filed?

Has a summons and complaint or summons w/notice been served?

Is this action/proceeding being filed post-judgment?

If yes, date filed: 03/11/2016

If yes, date served: _____

If yes, judgment date: _____

NATURE OF JUDICIAL INTERVENTION:

Check ONE box only AND enter additional information where indicated.

- ☐ Infant's Compromise
☐ Note of Issue and/or Certificate of Readiness
☐ Notice of Medical, Dental, or Podiatric Malpractice
☐ Notice of Motion
☐ Notice of Petition
☐ Order to Show Cause
☐ Other Ex Parte Application
☐ Poor Person Application
☒ Request for Preliminary Conference
☐ Residential Mortgage Foreclosure Settlement Conference
☐ Writ of Habeas Corpus
☐ Other (specify): _____

Date Issue Joined: _____

Return Date: _____

Relief Sought: _____

Return Date: _____

Relief Sought: _____

Relief Sought: _____

Relief Sought: _____

RELATED CASES:

List any related actions. For Matrimonial actions, include any related criminal and/or Family Court cases. If additional space is required, complete and attach the RJL Addendum. If none, leave blank.

Case Title	Index/Case No.	Court	Judge (if assigned)	Relationship to Instant Case

PARTIES:

For parties without an attorney, check "Un-Rep" box AND enter party address, phone number and e-mail address in space provided. If additional space is required, complete and attach the RJL Addendum.

Un-Rep	Parties:	Attorneys and/or Unrepresented Litigants:	Issue Joined (Y/N):	Insurance Carrier(s):
☐	WARING Last Name WILLIAM First Name Plaintiff Secondary Role (if any):	DEPAOLA Last Name JOHN R. DEPAOLA & ASSOCIATES PLLC Firm Name 42-40 BELL BLVD, SUITE 500 Street Address BAYSIDE City New York State 11361 Zip +1 (718) 281-4000 Phone +1 (718) 281-4030 Fax e-mail	☒ YES ☐ NO	
☐	CITY OF NEW YORK Last Name First Name Primary Role: Defendant Secondary Role (if any):	CORPORATION COUNSEL OF THE CITY OF NEW YORK Firm Name 100 CHURCH STREET Street Address NEW YORK City New York State 10007 Zip Phone Fax e-mail	☒ YES ☐ NO	
☐	Last Name First Name Primary Role: Secondary Role (if any):	Last Name Firm Name Street Address City State Zip Phone Fax e-mail	☐ YES ☐ NO	
☐	Last Name First Name Primary Role: Secondary Role (if any):	Last Name Firm Name Street Address City State Zip Phone Fax e-mail	☐ YES ☐ NO	

I AFFIRM UNDER THE PENALTY OF PERJURY THAT, TO MY KNOWLEDGE, OTHER THAN AS NOTED ABOVE, THERE ARE AND HAVE BEEN NO RELATED ACTIONS OR PROCEEDINGS, NOR HAS A REQUEST FOR JUDICIAL INTERVENTION PREVIOUSLY BEEN FILED IN THIS ACTION OR PROCEEDING.

Dated: 06/21/2016

 1845221
 ATTORNEY REGISTRATION NUMBER

SIGNATURE

JOHN R. DEPAOLA

PRINT OR TYPE NAME

Print Form

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER FRANK LOCASCIO OF PBBX,
SHIELD #1194, TAX REG. # 955074; OTHER NEW
YORK CITY POLICE DETECTIVES OR OFFICERS
ON SAID ARREST WHOSE NAMES ARE NOT
KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-
IV II-V AS IT PERTAINS TO THE INCIDENT THAT
AROSE ON 12/29/2014, AND NO OTHER DATE,

Defendants.

Index No.: 301015-2016
Law Dept #2016-009915

REQUEST FOR
PRELIMINARY
CONFERENCE

TO CLERK, IAS PART

I hereby request that the above entitled action be set down for a Preliminary
Conference. The nature of the action is Personal Injury.
State of the matters to be heard.

- (X) Examination Before Trial of all parties.
- (X) Plaintiff's Demand for a Verified Bill of Particulars;
- (X) Plaintiff's Demand for Statements;
- (X) Plaintiff's Demand for Witnesses and persons with knowledge of
incident;
- (X) Discovery of all reports made in connection with this incident;
- (X) Plaintiff's Demand for Photographs, etc;
- (X) Notice of Expert Witnesses.

Dated: Bayside, New York
June 21, 2016

Yours, etc.


JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
42-40 Bell Boulevard, Suite 500
Bayside, New York 11361
718- 281-4000

TO: CORPORATION COUNSEL
OF THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007
212-788-0646

STATE OF NEW YORK)
 : ss.:
COUNTY OF QUEENS)

I, BETTY ZEBALLOS, being duly sworn depose and say:

I am not a party to the action, am over 18 years of age and maintain office in Bayside, New York.

That on the 21st day of June, 2016 deponent served the within
**REQUEST FOR PRELIMINARY CONFERENCE & REQUEST FOR
JUDICIAL INTERVENTION**

upon:

CORPORATION COUNSEL OF
THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

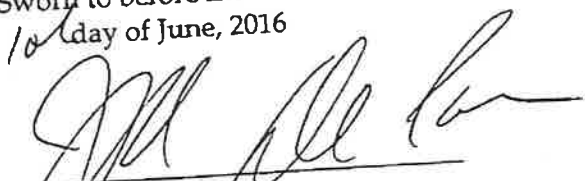
/xxx/ by delivering a true copy thereof enclosed in a post-paid wrapper, in an official depository under the exclusive care and custody of the U.S. Postal Service within New York State, addressed to each of the above persons at the last known address set forth after each name.

/_/_/ by delivering a true copy thereof personally to each person named above at the address indicated. I knew each person served to be the person mentioned and described in said papers as a party therein:

/_/_/ by depositing a true copy thereof, enclosed in a wrapper addressed as shown above, into the custody of **FEDERAL EXPRESS/EXPRESS MAIL** for overnight delivery, prior to the latest time designated by that service for overnight delivery.


BETTY ZEBALLOS

Sworn to before me this
21st day of June, 2016


NOTARY PUBLIC

JOHN R. DEPAOLA
Notary Public, State of New York
NO. 02DE5003115
Qualified in Suffolk County
Commission Expires October 13, 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194,
TAX REG. # 955074; OTHER NEW YORK CITY POLICE
DETECTIVES OR OFFICERS ON SAID ARREST WHOSE
NAMES ARE NOT KNOWN AT THIS TIME N/H/A/
JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON 12/29/2014, AND NO
OTHER DATE,

Defendants.

NOTICE OF MOTION
FOR DEFAULT JUDGMENT

Index No.: 301015-2016
Law Dept #2016-009915

2016 AUG -3 PM 2:45
COUNTY CLERK
BRONX COUNTY

RECEIVED

PLEASE TAKE NOTICE, that upon the affirmation of JOHN R. DEPAOLA
dated July 27, 2016, the affidavit of WILLIAM WARING, dated July 21, 2016, the affidavit
of JOHN L. HUDAK, dated June 30, 2016, and the affidavit of JOHN ALDERSON, dated
July 27, 2016, and all the exhibits annexed hereto, a motion pursuant to C.P.L.R. 3215(a) will
be made at the Clerk's Office of the Bronx Supreme Court, Civil Division, Room 217, 851
Grand Concourse, Bronx, New York, on the 7th day of September, 2016 at 9:30 o'clock
in the forenoon of that day, or as soon thereafter as counsel can be heard, for an order
directing the entry of judgment in favor of the Plaintiff against the individual Defendant,
SGT. ALBERTO PUENTE OF THE 46 PCT., SHIELD #5326, TAX REG. #939253, for the
relief demanded in the complaint, upon the ground that said Defendant, NEW YORK
CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. #
955074, has failed to interpose an answer or otherwise move with respect to the complaint,
and for such other and further relief as may be proper and equitable.

PRELIMINARY CONFERENCE ORDER
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX : PART 1A-3

325 (d) _____

Comp. Conf. 11/3/2017

N.O.I. due 1/1

Index Number: 301015/2016

PC Date: 8/16/16

Hon.: Schachner

William Waring

Plaintiff(s)

- against -

City of New York, et al

Defendant(s)

I. INSURANCE COVERAGE:

- (a) Defendant: City of New York Self-Insured Amt: _____
Defendant: _____ Amt: _____
Defendant: _____ Amt: _____
Defendant: _____ Amt: _____

- (a) Defendant(s) _____ to provide
evidence of all insurance within 60 days, to extent not previously provided.

II. BILL OF PARTICULARS:

A verified bill of particulars for affirmative defenses shall be served by Defendant City
_____ within 60 days of this order or receipt of the
demand therefore, whichever is later.

III. MEDICAL REPORTS AND AUTHORIZATIONS (TO BE PROVIDED WITHIN 60 DAYS):

- (a) Plaintiff(s) shall provide authorizations to obtain records of all treating and examining health care providers, including diagnostic tests, x-rays, MRIs, EMGs, CT Scans, for injuries specified in the bill of particulars.
- (b) Plaintiff(s) shall provide an authorization for collateral source information, if any.
- (c) If plaintiff is claiming a loss of income or wages, if plaintiff is self-employed, authorizations for IRS records, or if employed, then authorizations for employment records, shall be provided for the year of, year before and year after the date of the alleged accident, as well as authorizations for the period of time lost from work as a result of the alleged accident.
- (d) If, plaintiff was a student at the time of the alleged accident, plaintiff shall provide an authorization for school records for the day of the accident and for the period of time lost from school as a result of the alleged accident.
- (e) For cases alleging police assault or false arrest, plaintiff shall provide an authorization for unsealing of the Criminal Court file and for Police Department records.

IV. DEPOSITIONS: (check applicable box)

- (a) The depositions of the following parties shall take place on _____ at _____ a.m./p.m. within the Office of the Corporation Counsel located at 198 East 161st Street, Bronx, New York, or as otherwise agreed:

____ All parties

☒ Plaintiff(s)

☒ Defendant(s)

____ Waived by _____

11/2/16 @ 851 Grand Concourse

11/9/16 @ 1775 Grand Concourse

as to _____

- (b) Defendant(s) reserve the right to a further deposition of plaintiff(s), as to any new injuries or damages claimed in any supplemental bill of particulars served by plaintiff(s) following the plaintiff's deposition.

V. PHYSICAL EXAMINATION:

- (a) A physical examination of the plaintiff shall be scheduled within 60 days after plaintiff's examination before trial.
- (b) A copy of the physician's report shall be furnished to plaintiff(s) within 60 days after the examination.
- (c) Defendant(s) reserve the right to a further physical as to any new injuries claimed in any supplemental bill of particulars served by plaintiff(s).

VI. OTHER DISCLOSURE:

- (a) All parties shall provide the names and addresses of any witnesses to the occurrence and notice witnesses; accident reports; party statements; photographs taken in the ordinary course of business within 60 days.
- (b) The City of New York and/or other defendants represented by Corporation Counsel, if any, shall provide the following information to all parties within 60 days, subject to the date and location specified in the notice of claim (check if applicable).

1. Premises Liability Cases:

- i. Departmental accident/incident report from respective City agency;
- ii. For non-transitory conditions, maintenance and repair records and written complaints regarding the condition complained of for 2 years prior to and including the date of occurrence.
- iii. For transitory conditions, maintenance and written complaints regarding the condition complained of for 2 months prior to and including the date of the occurrence.
- iv. Lease and or sublease for the City-owned building, if applicable.

2. Slip and Fall Cases (Department of Sanitation):

To be produced at EBT of defendant City of New York:

- i. District Operation Log (carting book) for the period of 2 weeks prior to and including the date of the occurrence.
- ii. District Snow Operation Book for the above period of time.
- iii. Snow Removal Operation Report (SR-2) and spreading or plowing operation card for the above time period, if the occurrence took place in the roadway.

3. Trip and Fall Cases (Department of Transportation (DOT))

- i. Applications for permits and permits for 2 years prior to and including the date of occurrence;
- ii. Cut forms and repair orders for 2 years prior to and including the date of occurrence;
- iii. Violations issued for 2 years prior to and including the date of occurrence;
- iv. Contracts and all related contract documents (e.g., progress reports) for 2 years prior to and including the date of occurrence will be made available for inspection at either the Office of the Corporation Counsel located at 198 East 161st Street, Bronx, New York, or the appropriate City agency, upon appointment;
- v. Complaints made for 2 years prior to and including the date of occurrence;
- vi. Copy of the most recent Big Apple Pothole and Sidewalk Protection Corporation map, filed at least 15 days prior to the date of occurrence, if incident occurred on a sidewalk or in a crosswalk.

4. Cases involving allegations of defective traffic signals (DOT):

- i. Maintenance and repair records for 2 months prior to and including date of occurrence;
- ii. Complaints made for 2 months prior to and including date of occurrence;
- iii. The name and address of the contractor responsible for maintenance of the traffic signals on date of the occurrence and for 2 months prior thereto;
- iv. A copy of the contract(s) in effect at the time of occurrence and for 2 months prior thereto will be made available for inspection at either the Office of the Corporation Counsel located at 198 East 161st Street, Bronx, New York, or the appropriate City agency, upon appointment.

5. Cases involving allegations of defective traffic signs (DOT):

- i. Maintenance and repair records for 2 months prior to and including the date of occurrence;
- ii. Complaints for 2 months prior to and including the date of occurrence.

all docs
to the
extent
generated
and subject to
redaction and
in City's Possession

6. Cases involving allegations of police misconduct:

The City will provide the following within 60 days after the receipt from plaintiff, of an authorization and "so-ordered" unsealing order described in III (e) above:

- i. Complaint report;
- ii. Complaint follow-up report(s);
- iii. Arrest report;
- iv. Memo book entries for incident in question;
- v. On-line booking sheet.

VI. Aided Report
VII. Medical & Prisoner Report
VIII. Command Log
IX. SPENT Report
X. Line of Duty Injury Report

7. Inmate assault cases (Department of Correction (DOC)):

- i. Department of Correction incident report, subject to redaction of privileged information, including any information regarding criminal acts of other inmates and/or personal information regarding DOC employees;
- ii. Injury to inmate report (within 60 days after receipt of an authorization from plaintiff).

8. Motor vehicle accidents involving city-owned vehicles:

- i. Departmental accident report from respective city agency
- ii. Maintenance and repair records for the department vehicle involved for one year prior to and including the date of the occurrence, if a vehicular defect is alleged in either the departmental accident report or the MV-104.

9. Board of Education cases:

- i. Accident report: The defendant shall notify the parents of student(s) named in the accident report as to the release of those students names and/or addresses within 30 days of the date herein. Within 45 days of that notification, the defendant shall release the information to the other parties, absent an objection from the notified persons. Board of Education comprehensive accident report(s) for the occurrence is subject to redaction of privileged information pursuant to the Family Education and Privacy Act, U.S. Code Ann., Title 20, Ch. 31;
- ii. Witnesses: The defendant shall notify the parents of student witnesses as to the release of those students names and/or addresses within 30 days of the date herein. Within 45 days of that notification, the defendant shall release the information to the other parties, absent an objection from the notified persons. Witness statements are subject to redaction of privileged information pursuant to the Family Education and Privacy Act, U.S. Code Ann., Title 20, Ch. 31;
- iii. For non-transitory conditions, maintenance and repair records, written complaints, and to the extent applicable, related contracts for the site of plaintiff's accident, regarding the condition complained of for 2 years prior to and including the date of occurrence;
- iv. For transitory conditions, maintenance and written complaints regarding the condition complained of for 2 months prior to and including the date of the occurrence.

- (c) Any party who wishes to obtain prior notices of claim, pursuant to GML§ 50-g, may do so by contacting the Bureau of Law and Adjustment at (212) 669-3422 to obtain an appointment to search the index maintained at 1 Centre Street, New York, New York.
- (d) Any party who wishes to obtain an MV-104, be advised that the New York City Police Department no longer maintains MV-104s beyond 30 days for accidents occurring after April 15, 1995.
- (e) All searches shall be conducted based upon the date and location as described in the notice of claim.

VII CO-DEFENDANT(S) AND/OR THIRD-PARTY(IES) TO PROVIDE THE FOLLOWING TO ALL PARTIES:

N/A

VIII THIRD-PARTY ACTIONS/IMPLEADER:

Shall be completed on or before Per CPLR

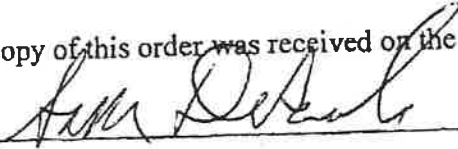
IX ADDITIONAL DIRECTIVES:

- Plaintiff to provide ~~for~~ HIPAA compliant authorizations for ~~for~~ Bristol Hospital + Bristol Hospital Physical Therapy; Plaintiff not to limit the date range and to provide AZs through ~~present~~ *End of Litigation*
- Plaintiff to provide blanket unsealing AZs pursuant to 160.50(a)(5) to the extent claiming emotional and psychological damages. Blanket unsealing to exclude Family Court/Jury arrests and T.O.'s.
- City to provide ~~Atty Gen~~ of A/C's partner in date of arrest to Name Shield, Counsel *extent applicable*

**This Preliminary Conference Order Shall Supersede Any Demands
for Discovery Previously Served upon Parties Represented by the
Office of the Corporation Counsel.**

**Failure to comply with any of these directives may result in the imposition of costs
or sanctions or other actions authorized by law.**

A copy of this order was received on the date hereof.


Attorney for Plaintiff(s) _____

Attorney for Plaintiff(s) _____

Attorney for Plaintiff(s) _____

Attorney for Plaintiff(s) _____


Attorney for Defendant: City of New York

Attorney for Defendant _____

Attorney for Defendant _____

Attorney for Defendant _____

Attorney for Defendant _____

Attorney for Defendant _____

This constitutes the decision and order of the court.

Dated: 8/16/16


J.S.C.
HON. LARRY S. SCHACHNER

Motion

1

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER FRANK LOCASCIO OF PBBX,
SHIELD #1194, TAX REG. # 955074; OTHER NEW
YORK CITY POLICE DETECTIVES OR OFFICERS
ON SAID ARREST WHOSE NAMES ARE NOT
KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-
IV II-V AS IT PERTAINS TO THE INCIDENT THAT
Arose ON 12/29/2014, AND NO OTHER DATE,

Defendant(s).

Index No. 301015/2016

Plaintiff designates BRONX
County as the place of trial

The basis of the venue is where
the tort arose.

AMENDED SUMMONS

Plaintiff(s) resides at

WILLIAM WARING
320 Queen Street, Apt 9D
Bristol, CT 06010.

TO THE ABOVE NAMED DEFENDANT(S):

You ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
March 24, 2016


JOHN R. DEPAOLA, ESQ. of
JOHN R. DEPAOLA & ASSOCIATES PLLC
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

Defendants' Addresses:

CORPORATION COUNSEL OF THE CITY OF NEW YORK

100 Church Street
New York, NY 10007

NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX

REG. # 955074

1 Police Plaza, Room 1100 (Narcotis)
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER FRANK LOCASCIO OF PBBX,
SHIELD #1194, TAX REG. # 955074; OTHER NEW
YORK CITY POLICE DETECTIVES OR OFFICERS
ON SAID ARREST WHOSE NAMES ARE NOT
KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-
IV II-V AS IT PERTAINS TO THE INCIDENT THAT
Arose ON 12/29/2014, AND NO OTHER DATE,

Defendant(s).

Index No. 301015/2016

AMENDED
VERIFIED COMPLAINT

WILLIAM WARING, by his attorneys, JOHN R. DEPAOLA & ASSOCIATES PLLC,
respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff, WILLIAM WARING was a resident of the City of Newark, County of Essex, City and State of New Jersey. However, Plaintiff relocated to Bristol, Connecticut on or about January 1, 2015, which is Plaintiff's current address.
2. At all times mentioned, Defendant, CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the March 23, 2015 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on

their behalf upon the Defendant, **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer(s) designated to receive such process personally, which Notice of Claim advised the Defendant, **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff, **WILLIAM WARING**, has complied with the request of the municipal Defendants' for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE**, and at all times herein were acting in such capacity as its agents, servants and employees.
7. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants jointly and

severally in their capacity as police officers, wrongfully touched, choked, grabbed, twisted the arms, handcuffed and seized the Plaintiff, **WILLIAM WARING**, in an excessive manner about his person, causing him physical pain and injury, including a fractured wrist, as well as mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law. Additionally Plaintiff was subjected to a strip search and cavity inspection.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE**, jointly and severally did place Plaintiff, **WILLIAM WARING** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike, choke, restrain, and twist the arms of the Plaintiff, resulting in physical injury including a fracture of the wrist. All of the above actions placed the Plaintiff in

imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants. The Plaintiff was also subjected to a strip search and cavity inspection.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants, NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully *arrested* the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2014BX037236. The Plaintiff was thereafter held in custody over the course of approximately forty-one (41) hours until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about December 29, 2014, which the police state was December 30, 2014, at approximately 11:00 P.M. in the vicinity of the inside of Prospect Avenue and 164th Street, County of Bronx, State of New York, the Defendants, NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully *imprisoned* the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in one of the City of New York's Correctional Facilities. The Plaintiff was thereafter held in custody over the course of approximately forty-one (41) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.

15. Upon information and belief, on or about December 29, 2014 and from that time until the dismissal of charges on or about December 31, 2014, which was a favorable termination for the accused by the Honorable Judge A. Montano presiding at the Criminal Court of the City of New York, Bronx County, Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE, deliberately and maliciously prosecuted Plaintiff, WILLIAM WARING, an innocent man, without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.
16. The Defendants, jointly and severally, including their agents, servants or employees, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff, and due to the absence of probable cause malice can be inferred.
17. The commencement of these criminal proceedings under Docket No. 2014BX067609 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust

criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A SIXTH CAUSE OF ACTION

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.
20. Defendants, NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
21. At all times mentioned herein, said police officers were acting under color of law, to wit, the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.
22. Plaintiff, WILLIAM WARING, is and at all times relevant herein, a citizen of the United States and brings this cause of action pursuant to Article 42, Section 1983 of the United States Code, and Article 42, Section 1988 of the United States Code.
23. The Defendant, CITY OF NEW YORK, is a municipality duly incorporated under the laws of the State of New York.
24. On or about December 29, 2014, which the police state was on December 30, 2014, the Defendants, armed police, while effectuating the seizure of the Plaintiff WILLIAM WARING, did search, seize, assault and commit a battery and grab

the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully had multiple assault and batteries committed against him, including choking, and having his wrists twisted resulting in a fracture to the wrist, imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.

25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
 - a. freedom from assault to his person;
 - b. freedom from battery to his person;
 - c. freedom from illegal search and seizure;
 - d. freedom from false arrest;
 - e. freedom from malicious prosecution;
 - f. freedom from the use of excessive force during the arrest process;
 - g. freedom from unlawful imprisonment; and
 - h. freedom from loss of his liberty.
26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature, as well as

physical injuries including fracture of Plaintiff's wrist. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.
29. Defendant, **CITY OF NEW YORK**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
30. Defendant, **CITY OF NEW YORK**, was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

31. Defendant, **CITY OF NEW YORK**, is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

- a. probable cause must be present before an individual such as the Plaintiff herein can be arrested;
- b. excessive force cannot be used against an individual who does not physically resist arrest; and
- c. an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

32. The foregoing acts, omissions and systemic failures are customs and policies of the Defendant, **CITY OF NEW YORK**, which caused the police officers to falsely arrest and imprison, maliciously prosecute, search and seize illegally, commit an assault/battery to his person, subjected Plaintiff to strip search and cavity inspection, and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

33. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "32" as it set forth at length herein.

34. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Defendants, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT**

THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON 12/29/2014, AND NO OTHER DATE knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
March 24, 2016

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY: 
JOHN R. DEPAOLA
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER FRANK LOCASCIO OF PBBX,
SHIELD #1194, TAX REG. # 955074; OTHER NEW
YORK CITY POLICE DETECTIVES OR OFFICERS
ON SAID ARREST WHOSE NAMES ARE NOT
KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-
IV II-V AS IT PERTAINS TO THE INCIDENT THAT
Arose ON 12/29/2014, AND NO OTHER DATE,

Defendant(s).

Index No. 301015/2016

VERIFICATION

I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State,
state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the
attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the
contents thereof; the same is true to my own knowledge, except as to the matters therein stated
to be alleged on information and belief, and as to those matters I believe it to be true. The
reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside
the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
March 24, 2016

JOHN R. DEPAOLA

Index No. : _____/2016

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE ARRESTING NYPD POLICE DETECTIVE ON
ARREST DATE OF 12/29/2014 AND/OR 12/30/2014 UNDER DOCKET
#2014BX067609 N/H/A JOHN/JOANE DOE I, OTHER NEW YORK CITY POLICE
DETECTIVES ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS
TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT
THAT AROSE ON 12/29/2014 AND/OR 12/30/2014, AND NO OTHER DATES,
Defendants.

NOTICE OF MOTION FOR DEFAULT JUDGMENT
AFFIRMATION IN SUPPORT, AFFIDAVITS AND EXHIBITS

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-4000

To: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 CHURCH STREET, NEW YORK, NY 10007

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated _____

Attorney(s) for

2016 JAN 4 - 5:00 PM

9/14/16

PART 33

Case Disposed ☐
Settle Order ☐
Schedule Appearance ☐

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX:

WARING, WILLIAM

-against-

CITY OF NY

Index No. 0301015/2016

Hon. LARRY S. SCHACHNER,

Justice Supreme Court

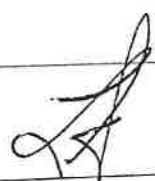
The following papers numbered 1 to 1 Read on this motion, **DEFAULT JUDGMENT**
Noticed on **September 07 2016** and duly submitted as No. 92 on the Motion Calendar of September 7, 2016

	PAPERS NUMBERED	
Notice of Motion - Order to Show Cause - Exhibits and Affidavits Annexed	1	
Answering Affidavit and Exhibits		
Replying Affidavit and Exhibits		
_____ Affidavits and Exhibits		
Pleadings - Exhibit		
Stipulation(s) - Referee's Report - Minutes		
Filed Papers		
Memoranda of Law		

Upon the foregoing papers this *motion by plaintiff for a default judgment against defendant Police officer Frank Locasio* is permitted to be withdrawn as per the stipulation dated August 16, 2016.

Motion is Respectfully Referred to:
Justice: _____
Dated: _____

Dated: 9, 9, 16

Hon. 
LARRY S. SCHACHNER, J.S.C.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

INDIVIDUAL ASSIGNMENT PART 3

STIPULATION

Index No. 301015/2016

Mot. Cal.No.

Date 8/16/16

William Waring

City of New York, et al

IT IS HEREBY STIPULATED AND AGREED by and between the below-named attorney(s) as follows:

Plaintiff hereby withdraws the motion
for default presently returnable
September 7, 2016

WBN

9/7

1A-33

Date:

So Ordered.

ENTER:

J.S.C.

[Signature]

Attorney for Plaintiff

Sam DePaola

[Signature]

Attorney for Defendant

Moses Ahn

Attorney for Defendant

1552

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194,
TAX REG. # 955074; OTHER NEW YORK CITY POLICE
DETECTIVES OR OFFICERS ON SAID ARREST WHOSE
NAMES ARE NOT KNOWN AT THIS TIME N/H/A/
JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON 12/29/2014, AND NO
OTHER DATE,

Defendants.

NOTICE OF MOTION
FOR DEFAULT JUDGMENT

Index No.: 301015-2016
Law Dept #2016-009915

PLEASE TAKE NOTICE, that upon the affirmation of JOHN R. DEPAOLA
dated July 27, 2016, the affidavit of WILLIAM WARING, dated July 21, 2016, the affidavit
of JOHN L. HUDAK, dated June 30, 2016, and the affidavit of JOHN ALDERSON, dated
July 27, 2016, and all the exhibits annexed hereto, a motion pursuant to C.P.L.R. 3215(a) will
be made at the Clerk's Office of the Bronx Supreme Court, Civil Division, Room 217, 851
Grand Concourse, Bronx, New York, on the 7th day of September, 2016 at 9:30 o'clock
in the forenoon of that day, or as soon thereafter as counsel can be heard, for an order
directing the entry of judgment in favor of the Plaintiff against the individual Defendant,
SGT. ALBERTO PUENTE OF THE 46 PCT., SHIELD #5326, TAX REG. #939253, for the
relief demanded in the complaint, upon the ground that said Defendant, NEW YORK
CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. #
955074, has failed to interpose an answer or otherwise move with respect to the complaint,
and for such other and further relief as may be proper and equitable.

9/17
1A-33

DEF
SUB

PLEASE TAKE FURTHER NOTICE that pursuant to CPLR 2214(b), answering papers, if any, are to be served upon the undersigned at least seven (7) days prior to the return date hereof.

Dated: Bayside, New York
July 27, 2016

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY: JOHN R. DEPAOLA

Attorneys for Plaintiff
42-40 Bell Boulevard, Suite 500
Bayside, NY 11361
(718) 281-4000

TO:

CORPORATION COUNSEL OF
THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX
SHIELD #1194, TAX REG. # 955074
NYPD 41st Precinct
1035 Longwood Avenue
Bronx, NY 10459
(Personal and confidential via blank envelope)

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194,
TAX REG. # 955074; OTHER NEW YORK CITY POLICE
DETECTIVES OR OFFICERS ON SAID ARREST
WHOSE NAMES ARE NOT KNOWN AT THIS TIME
N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS
TO THE INCIDENT THAT AROSE ON 12/29/2014, AND
NO OTHER DATE,

Defendants.

AFFIRMATION IN
SUPPORT OF MOTION
FOR DEFAULT
JUDGMENT

Index No.: 301015-2016
Law Dept #2016-009915

JOHN R. DEPAOLA, an attorney being duly admitted to practice in the Courts
of the State of New York and knowing full well the penalties, affirms pursuant to
C.P.L.R. 2106 as follows:

1. I represent the Plaintiff, WILLIAM WARING, in the above-entitled
action and am fully familiar with the facts and circumstances hereinafter
set forth herein. The information provided herein is upon information
and belief, the source, the information on belief are conversation(s) with
members of my staff, review of the case file, and/or the exhibits and
affidavits attached herein.
2. The above-entitled action was brought for personal injuries sustained by
Plaintiff as a result of his being falsely arrested, maliciously prosecuted,
illegally searched seized and sustaining emotional distress as a result of
the foregoing, and having his civil and constitutional rights violated in an

intentional manner by the Defendants. (See Exhibit One for additional information).

3. The above-entitled action was commenced against Defendants by the service of copies of the Summons and Complaint on, **THE CITY OF NEW YORK** on March 24, 2016. (Copy of the Summons and Complaint and Affidavit of Service on the City of New York, thereof are annexed hereto as **Exhibits One and Two**, respectively). Please note that my office had confirmed the present commands of the police officer by calling the "wheel" at One Police Plaza, NY, NY at 646-610-5130. The "wheel" verified that the officer was active NYC Police Officer not on active Military service of the United States of America. An Amended Summons was filed on March 28, 2016, and served upon the City of New York by mail on April 1, 2016, and served upon the **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074**, on April 12, 2016 - Service was accepted on their behalf by P.O Sanchez (Copy of the Amended Summons and Amended Verified Complaint and Affidavits of Service thereof are annexed hereto as **Exhibits Three and Four** respectively).
4. To date, Defendant, **NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074**, has not appeared nor otherwise moved with respect to the complaint herein and the time to do so has expired and has not further been extended.

5. Defendant, NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074, is now in default in pleading.
6. As the result of the Defendants' intentional torts and negligence, the Plaintiff has severe and protracted injuries, including mental distress, etc. Plaintiff has a meritorious cause of action.
7. Pursuant to C.P.L.R. 306A, a Summons and Verified Complaint, and Affidavit of service have been filed in the case with the Clerk of the Court. (See Exhibits One and Two, respectively).
8. No previous application for the relief requested herein has been made.

WHEREFORE, your Affirmant respectfully requests the Court to approve an Order directing the entry of judgment in favor of the Plaintiff, and to hold an inquest for the co-defendant in abeyance until the trial of the answering defendant is completed.

Dated: Bayside, New York
July 27, 2016

Respectfully submitted,

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY: JOHN R. DEPAOLA

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194,
TAX REG. # 955074; OTHER NEW YORK CITY POLICE
DETECTIVES OR OFFICERS ON SAID ARREST
WHOSE NAMES ARE NOT KNOWN AT THIS TIME
N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS
TO THE INCIDENT THAT AROSE ON 12/29/2014, AND
NO OTHER DATE,

Defendants.

AFFIDAVIT IN SUPPORT
OF MOTION FOR
DEFAULT JUDGMENT

Index No.: 301015-2016
Law Dept #2016-009915

STATE OF NEW YORK)

COUNTY OF *Bronx*)

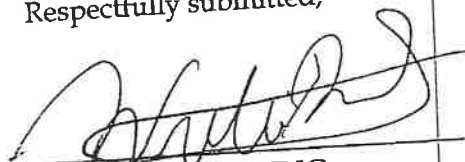
ss.:

I, WILLIAM WARING, being duly sworn state the following:

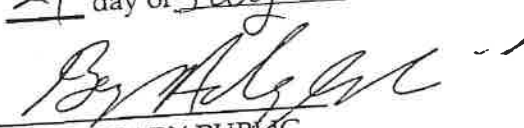
1. I am the Plaintiff in the above mentioned caption wherein THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074; OTHER NEW YORK CITY POLICE DETECTIVES OR OFFICERS ON SAID ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE INCIDENT, are Defendants.
2. I have suffered mental distress, loss of liberty, violation of my civil and Constitutional rights with the mental/emotional distress continuing and believed to be permanent.

3. As a result of the above, I have had my civil as well as Constitutional rights violated by the above named defendants. The employment and negligent procedures used by the Defendants all contributed to my injuries.
4. I have read the complaint attached to Mr. DePaola's affidavit and find it to be accurate and true.
5. I have been informed that Defendant, NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074, although he has been served, has not or refuses to answer the charges stated in the complaint.
6. I, too, join in my counsel's application and request that the Court approve an Order directing the entry of a judgment in my favor.

Respectfully submitted,


WILLIAM WARING

Sworn to before me this
21 day of July 2016


NOTARY PUBLIC

BENJAMIN ADEGBITE
Notary Public, State of New York
Reg. #01AD4901620
County in Bronx County
Commission Expires July 20, 2017

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.: 301015-2016
Law Dept #2016-009915

WILLIAM WARING,

Plaintiff,

AFFIDAVIT IN SUPPORT
OF MOTION FOR
DEFAULT JUDGMENT

-against-
THE CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194,
TAX REG. # 955074; OTHER NEW YORK CITY POLICE
DETECTIVES OR OFFICERS ON SAID ARREST WHOSE
NAMES ARE NOT KNOWN AT THIS TIME N/H/A/
JOHN/JANE DOE II-IV II-V AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON 12/29/2014, AND NO
OTHER DATE,

Defendants.

STATE OF NEW YORK)
 : ss.:
COUNTY OF SUFFOLK)

I, JOHN L. HUDAK, being duly sworn depose and state the following:

I was the process server in the matter of WILLIAM WARING v. THE CITY OF NEW YORK, et al. On April 12, 2016, I served an Amended Summons and Amended Complaint upon NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074.

Service was accepted on his behalf by P.O. Sanchez. I had, before serving the summons, confirmed that the individually named, NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074, was an active duty member of the City of New York Police Department not in military service on the date he was served. I know this because I called the "Wheel" where I spoke to NYPD personnel who confirmed both then

Police officer was an active member of New York City Police Department not on military leave.

Sworn to before me this

day of 30th June 2016

NOTARY PUBLIC

Craig L. Eisenberg
Notary Public, State of New York
Registration No. 01E16030725
Qualified in Suffolk
Commission Expires September 20, 2017

John L. Hudak
JOHN L. HUDAK

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM WARING,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194,
TAX REG. # 955074; OTHER NEW YORK CITY POLICE
DETECTIVES OR OFFICERS ON SAID ARREST
WHOSE NAMES ARE NOT KNOWN AT THIS TIME
N/H/A/ JOHN/JANE DOE II-IV II-V AS IT PERTAINS
TO THE INCIDENT THAT AROSE ON 12/29/2014, AND
NO OTHER DATE

Defendants.

STATE OF NEW YORK)

:

ss.:

COUNTY OF QUEENS)

AFFIDAVIT IN SUPPORT
OF MOTION FOR
DEFAULT JUDGMENT

Index No.: 301015-2016
Law Dept #2016-009915

I, JOHN ALDERSON, being duly sworn, depose and state the following:

I am a paralegal at the law firm of JOHN R. DEPAOLA & ASSOCIATES PLLC.

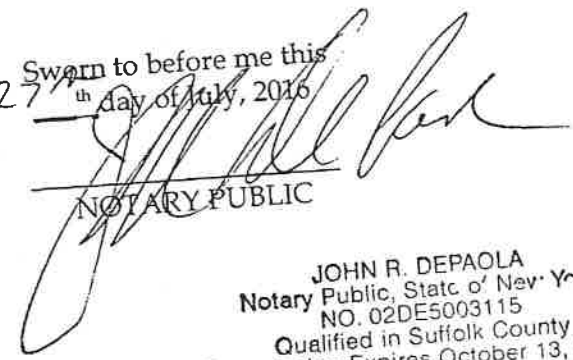
On July 27, 2016, I mailed a copy of this motion marked personal and confidential via blank envelope to NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074, his copy of the Summons and Complaint were served on April 12, 2016, by a licensed process server, and accepted by P.O. Sanchez. I also mailed a copy of this motion to the CORPORATION COUNSEL OF THE CITY OF NEW YORK.

I confirmed that the individually named defendant, NEW YORK CITY POLICE OFFICER FRANK LOCASCIO OF PBBX, SHIELD #1194, TAX REG. # 955074, were active duty members of the City of New York Police Department not in military service on the date

they were served. I know this because I called the "Wheel" where I spoke to NYPD personnel who confirmed both then Police officer was an active member of New York City Police Department not on military leave.


JOHN ALDERSON

Sworn to before me this
27th day of July, 2016


NOTARY PUBLIC

JOHN R. DEPAOLA
Notary Public, State of New York
NO. 02DE5003115
Qualified in Suffolk County
Commission Expires October 13, 2018

Index No.: 301015-2016
Law Dept #2016-009915

STATE OF NEW YORK)
 : ss.:
COUNTY OF QUEENS)

I, JOHN ALDERSON, being duly sworn depose and say:

I am not a party to the action, am over 18 years of age and maintain office in Bayside, New York.

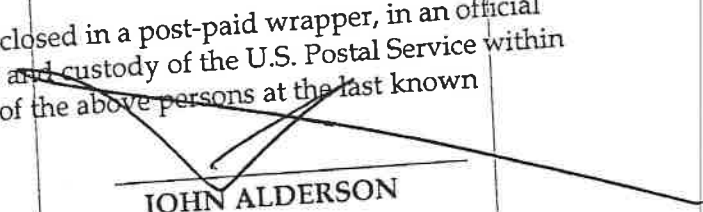
That on the 27th day of July, 2016 deponent served the within

**NOTICE OF MOTION FOR DEFAULT JUDGMENT, AFFIRMATION IN SUPPORT,
AFFIDAVITS IN SUPPORT AND EXHIBITS** upon:

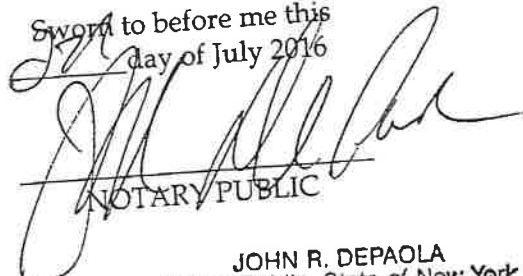
**CORPORATION COUNSEL OF
THE CITY OF NEW YORK**
100 Church Street
New York, NY 10007

**NEW YORK CITY POLICE OFFICER
FRANK LOCASCIO OF PBBX
SHIELD #1194, TAX REG. # 955074
NYPD 41st Precinct
1035 Longwood Avenue
Bronx, NY 10459
(Personal and confidential via blank envelope)**

/ xxx / by delivering a true copy thereof enclosed in a post-paid wrapper, in an official depository under the exclusive care and custody of the U.S. Postal Service within New York State, addressed to each of the above persons at the last known address set forth after each name.


JOHN ALDERSON

Sworn to before me this
27th day of July 2016


NOTARY PUBLIC

JOHN R. DEPAOLA
Notary Public, State of New York
NO. 02DE5003115
Qualified in Suffolk County
Commission Expires October 13, 2018

COPY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

William Waring
Plaintiff(s).

vs.

The City of New York, et al
Defendant(s),

ATTORNEY: JOHN R. DEPAOLA & ASSOCIATES PLLC

INDEX NUMBER: 301015/2016

DATE OF FILING: 3/28/2016

AFFIDAVIT OF SERVICE

STATE OF New York: COUNTY OF Nassau ss:

I, John L Hudak, being duly sworn deposes and says deponent is not a party to this action and is over the age of eighteen years and resides in the state of New York.

That on 04/12/2016 at 12:59 PM at 41st Precinct, 1035 Longwood Ave, Bronx, NY 10459,
Deponent served the Amended Summons and Amended Verified Complaint together with Index Number and Date of Filing
Endorsed Thereon upon P.O. Frank Locascio, Shield No. 1194, Tax Reg. No. 955074, defendant/respondent/recipient herein.

Said service was effected in the following manner;

By delivering thereat a true copy of each to P.O. Sanchez, a person of suitable age and discretion. That person was also asked by deponent whether said premises was the defendant/respondent/recipient actual place of business and their reply was affirmative.

Deponent describes the individual served to the best of deponent's ability at the time and circumstances of service as follows: Sex: Female Skin: Tan/Hispanic Hair: Brown Age (Approx): 32 Height(Approx): 5'4" Weight(Approx): 130-140 lbs Glasses: No Other:

On 04/13/2016, after delivery of process was effected, deponent enclosed an additional true and attested copy of same in postpaid envelope addressed to the defendant/respondent/recipient at defendant/respondent/recipient place of business in an official depository and by First Class Mail, under the exclusive care of the United States Postal Service within New York State. The envelope bore the Legend "Personal & Confidential" and did not indicate on the outside thereof, by return address or otherwise, that the communication was from an attorney or concerned an action against the defendant/respondent/recipient.

I asked the person spoken to if the defendant/respondent/recipient was in active military service of the United States or the State of New York in any capacity and received a negative reply. The source of my information and the grounds of my belief are the conversations and observations above narrated. Upon information and belief I aver that the defendant/respondent/recipient is not in the military service of New York State or the United States as that term is defined in the statutes of New York State or the Federal Soldiers and Sailors Civil Relief Act.

I certify that the foregoing statements made by me are true, correct and my free act and deed. I am aware that if any of the foregoing statements made by me are willfully false, I am subject to punishment.

Sworn to before me this

April 14 2016

CRAIG L. EISENBERG
NOTARY PUBLIC, STATE OF NEW YORK
REGISTRATION NO. 01E16030725
QUALIFIED IN SUFFOLK
COMMISSION EXPIRES SEPTEMBER 20, 2017

John L Hudak
License No. 1392295

2016 APR 27 P 2:51

OFFICE OF THE
BRONX COUNTY CLERK
RECORD ROOM

Ultimate Process Service, Inc. 585 Stewart Ave, Ste LL16, Garden City, NY 11530 516-333-3447 Lic#1376042
Case No: 1514529

**Bronx County Supreme Court
COMPLIANCE CONFERENCE ORDER
Part IA-11**

Present:

_____X
William Waring

Index No. 301015/2016

Plaintiff(s),

- against -

City of New York, et al
_____X
Defendant(s).

Date RJI filed: _____

UPON the Preliminary Conference Order dated 8/16/16, and following a Compliance Conference held on 4/12/17, and it appearing that disclosure was previously ordered herein and has not been completed, or that additional disclosure is warranted, it is hereby

ORDERED that disclosure shall proceed and be completed in accordance herewith; and it is further

ORDERED that proceedings directed herein shall be completed on or before the dates set forth. No adjournments, postponements or alterations of this order are permitted without the court's written approval, and none may be had upon the stipulation of the parties alone; and it is further

ORDERED that disclosure demands now known to be necessary which are not raised at this conference are deemed to be waived, unless otherwise ordered by the Court; and it is further

ORDERED that any statutory stays of disclosure due to the pendency of motions pursuant to CPLR §§ 3211, 3212 and 3213 are vacated; and it is further

ORDERED that any parties failing to appear at this conference shall be bound by the terms of this order; and it is further

ORDERED that the outstanding discovery shall be provided as follows:

1. **INSURANCE COVERAGE:** To be provided by _____
2. **BILL OF PARTICULARS:**
 - ___ A. Response to be provided by AS PER CPLR
 - Dated: _____
 - ___ B. Supplemental Bill of Particulars as to items: _____

 To be served by _____;
 - ___ C. D & I by _____ to be served by _____;
 - ___ D. Responses to _____'s D & I dated _____ to be served by _____;
3. **AUTHORIZATIONS:**
 - ___ A. For Medical Records (specifically for _____)
 to be served by _____;
 - ___ B. Authorizations for Plaintiff's:
 - ___ Employment Records;
 - ___ W-2 Records for Period _____;
 - ___ Other (Specify) _____;
 - To be served by: _____.
 - ___ C. For _____
 to be served by _____;
4. **EXAMINATION BEFORE TRIAL:**

6/22/17
☒ Plaintiff

7/6/17
☒ Defendant

☐ All Parties

 - ☒ A. To Be Held On TT 6/22 D 7/6 at 11:00 a.m.
 At TT 1775 D 851 or unless otherwise agreed, the Bronx Supreme Court Building, Room 118.
 Any EBT's not completed on said date will be continued on _____.
 - ___ B. Limitations: _____
 - ___ C. Post EBT demands to be served by AS PER CPLR
 and must be responded to by _____.

NOTE:
NO POSTPONEMENTS
ARE PERMITTED
WITHOUT COURT
APPROVAL.

FAILURE TO COMPLY WITH THIS SCHEDULE WILL RESULT IN THE PRECLUSION OF THE OFFENDING PARTY OR WAIVER OF EBT BY NON-APPEARING PARTY, UNLESS OTHERWISE ORDERED BY THE COURT.

5. PHYSICAL EXAMINATION:

- ☒ A. Defendant to designate physician(s) in writing by within 60 days of EBT
- ☐ B. Examination to be held by _____;
- ☐ C. Copy of physician's report to be furnished within 30 days of examination.

- FAILURE TO TIMELY DESIGNATE WILL RESULT IN A WAIVER OF SUCH EXAMINATION, UNLESS OTHERWISE ORDERED BY THE COURT.
- FAILURE TO COMPLY WILL RESULT IN PLAINTIFF'S PRECLUSION FROM OFFERING ANY EVIDENCE AT TRIAL REGARDING THEIR PHYSICAL CONDITION, UNLESS OTHERWISE ORDERED BY THE COURT.

6. OTHER DISCLOSURE:

- ☐ A. None.
- ☐ B. All parties to exchange names and addresses of all witnesses. opposing parties' statements and photographs. If none, an affirmation to that effect shall be exchanged by _____.

☒ C. Other: A to provide video taped statement before EBT to extent it exists; otherwise City to provide statement that it doesn't exist

To be served by _____;

and it is further

ORDERED that plaintiff Warner shall serve and file a Note of Issue and Certificate of Readiness on or before 12-1-17. The failure to file a Note of Issue as required by this order may subject the plaintiff to fines. Plaintiff may not file a Note of Issue unless all discovery due by plaintiff has been completed pursuant to this order. A party that files a Note of Issue where that party has not complied with this order may be subject to costs and/or sanctions; and it is further

ORDERED that failure to comply with the directives and schedule detailed herein will result in either a waiver of the item requested or the preclusion of items or testimony of the offending party's evidence at the time of trial. and/or the imposition of costs and sanctions, unless otherwise ordered by the Court.

DATED: 4/13/17

ENTER: [Signature]

J.S.C.
HON. LARRY S. SCHACHNER